

ORDER SHEET
IN THE LAHORE HIGH COURT,
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

Writ Petition No. 11056 of 2017

Mehboob ul Hassan

vs

Chairman Recruitment Committee etc

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
	03.04.2018	Mian Tahir Iqbal, Advocate for petitioner in WP Nos. 11056, 11146, 11053 and 11044 of 2017. Mr. Kabeer Ahmad Gill, Advocate for petitioner in WP No. 11045, 11144 and 11145 of 2017. Mr. Muhammad Aurangzaib Khan, AAG with Muhammad Akram Shahid, DEO(MEE), Muzaffargarh.

Through this single order, I intend to decide this petition alongwith connected matters bearing WP Nos. 11045, 11044, 11145, 11144, 11053, 11146 of 2017 as common question of law and facts is involved.

2. The brief facts of these petitions are that respondent Nos. 1 and 2 advertised in October / November 2016 for appointment to various posts of educators i.e. ESE(Science-Math) SESE (English), SESE(Urdu), SESE(Math), SESE(Science) and SESE(Arabic), etc. The petitioners having the requisite qualification applied for posts of ESE(Science-Math). The respondent No.1, after scrutinizing the academic records of the petitioners,

invited them to appear in the NTS exams who succeeded in the written test. Thereafter the successful candidates were invited for training by the respondents by excluding the names of the petitioners. The petitioners approached the respondents who informed them that their names have been removed from the subsequent merit list prepared by the respondents on the basis of impugned notification dated 24.07.2017.

3. In response to the notice issued by this Court, parawise comments were filed by the respondents stating therein that Government of the Punjab, School Education Department vide letter No.SO(SE-iv)02-50/2015 dated 09.09.2016 approved the academic and professional qualification criteria for recruitment of the existing posts of Educators and for the post of ESE, a candidate should be at least BA/BSc 2nd Division from a recognized university whereas the petitioners in these petitions hold 3rd Divisions, hence are not entitled to appointment.

4. Learned counsel for the petitioners have argued that the petitioners were eligible for appointments on the respective posts and were rightly recommended by the Recruitment Committee; that it is a settled law that nobody can be penalized by inaction of the public functionaries;

that the act of the respondents amounts to discrimination. He refers to the order dated 01.03.2018 passed by this Court at Rawalpindi Bench in WP No.2170 of 2017 to maintain that on the same subject, the said petition was allowed. Seeks similar relief on the principle of consistency.

5. Conversely, learned AAG supports the action taken by the respondents by referring to common observations made by Third Party Validation (TPV) of Recruitment of Educators and argues that a candidate having graduation degree with 3rd Division and Master Degree with 2nd Division shall be disqualified and as all the petitioners hold 3rd Division in graduation degree, therefore, the respondents have rightly disqualified them.

6. Heard. Record perused.

7. The recruitment process for eth appointment of Educators commenced under the Recruitment Policy 2016/2017 in October / November 2016 in which the petitioners applied for different posts of ESE including ESE (Sci-Math). Initial their candidature was processed further but subsequently they were dropped from the said process. The reason for rejection of the candidature of the petitioners is that they have obtained 3rd division in

graduation, therefore, despite the fact that they had initially been declared as qualified under the recruitment policy for competing in the selection process for appointment to the above said posts, their candidature was subsequently rejected. Such rejection is based on a circular issued by the Government of Punjab in Program Monitoring & Implementation Unit Punjab Education Sector Reform Program on 24.07.2017 whereby a condition was imposed that a candidate must at least have second division in BA/B.Sc. to be considered for appointment to such posts and the said process was made subject to Third Party Validation by a private firm hired under the direction of the Chief Minister to overview the recruitment process. The respondents on the recommendation of such Third-Party Validation proceeded to reject the candidature of the petitioners. In the present case, the petitioners are not simply graduates who have obtained 3rd Division in graduation, rather they also hold Masters Degrees in various subjects. For a candidate holding Masters Degree there is no restriction of having a particular grade or division in view of Clause 5(1)(iii) of the Recruitment Policy, 2016-2017 under

which the recruitment process had taken place, which is reproduced below:

"5(1) Ranking Criteria for Educators:

(i)...

(ii)...

(iii) The candidates of ESE or ESE (Sci-Math) having master degree in any subject are considered academic qualification. However, M.Ed/MA(Edu) /B.Ed degree shall be considered as professional qualification.

....."

8. From the perusal of the afore-referred provision it is abundantly clear that if the candidates held the Masters degree, he was to be treated as qualified despite the fact that the candidate had qualified Masters degree in any division (i.e. 1st, 2nd or 3rd). However, during the said process a notification No. DDP/PMIU/2017/15437 dated 24.01.2017 was issued by the Punjab Monitoring & Implementation Unit Punjab Education Sector Reform Program (PMIU PESRP) on the subject of Educators and SSE (AEOs) commenced in October / November 2016 in all districts of Punjab. Along with this notification some common observations were circulated. One such observation relates to 3rd Division cases which is reproduced below:

"3rd Division cases

Grade 9

A candidate with only Graduation Degree with 3rd Division, shall be disqualified.

A candidate with Graduation Degree with 3rd Division and Master Degree with 2nd Division, shall be disqualified.

A candidate with Graduation Degree with 2nd Division and Master Degree with 3rd Division, shall be eligible. Zero Marks shall be given in Masters."

9. On the basis of the afore-referred observations, the candidatures of the petitioners, who have graduated in 3rd Division, were rejected. The said observations are under challenge through this Constitutional petition.

10. Since the petitioners initially declared qualified for competing in selection against posts of ESE on the conditions laid down in the recruitment policy 2016/17 and the recruitment process commenced in the months of October/November 2016, and their candidature was rejected on the ground of later notification dated 24.07.2017 which is not a part of the original conditions on the strength of which the applications were invited from the candidates and the conditional detrimental to the interest of the petitioners has been belatedly introduced and that too on the recommendations of a third party, which is a private firm and hired under the direction of the Chief Minister in an arbitrary manner, therefore, the

rejection of candidature of the petitioners with such background and that too with retrospective effect cannot be given any judicial sanction. Even otherwise the provisions of the afore-referred policy cannot be arbitrarily interpreted on the basis of observations in the subsequent notification, which cannot be given effect to as a document superior to the said policy, rather the said document was in the shape of observations and the same could only be used to explain the policy but could not add to or amend or altogether change what is provided in the policy or superimpose a condition on the same, that would make its provisions redundant or meaningless.

11. Besides this Court vide order dated 01.03.2018 passed in WP No.2170 of 2017 has granted same relief to similarly placed persons by observing as under:

"In view of above, the present Constitutional petition is allowed and removal of the petitioners' names from the merit list for the post of ESE (Science-Math) for Government Primary School, Dhok Ajraal and Government Boys Primary School, Dhok Fazal Elahi (Thoha Mehram Khan) is declared as illegal and without lawful authority. The petitioners are directed to be appointed against posts they applied for forthwith and the competent authority at District Chakwal will issue appointment letters in favour of the petitioners

within next seven days positively. However, this arrangement will not disturb respondent Nos. 3 and 4 who have already been appointed."

12. Moreover, it is a well settled law that where law requires an act to be done in a particular manner, it has to be done in that manner alone and such dictate of law cannot be termed a mere technicality. Reliance in this regard is placed on Muhammad Anwar and others vs. Mst. Ilyas Begum and others (PLD 2013 S.C. 255). The same principle has been reiterated in the judgment reported as Shahida Bibi and others vs. Habib Bank Limited and others (PLD 2016 S.C. 995). In the recruitment process a person who had a Masters degree was deemed to be qualified to compete in the recruitment process under clause 5(1)(iii) of the policy. Therefore, while applying the principle of law laid down in the afore-referred judgments of the Honourable Supreme Court, it is observed that the petitioners were qualified to compete for recruitment to the posts of ESE under the recruitment process under the policy of 2016/17 and there, candidature was wrongly rejected.

13. For what has been discussed above, these constitutional petitions are *allowed* and it is held that the observations relating to disqualification of candidates

holding 3rd Division in Graduation made through the impugned notification dated 24.07.2017 would not be applicable to candidate holding Masters degree and consequently the rejection of candidature of the petitioners, who hold Masters degrees is *set-aside*. The respondents are directed to reconsider the case of the petitioners for appointment and process the same on its own merits strictly in accordance with law, rules and policy.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Approved for reporting.

JUDGE

Naveed *